

BEFORE THE COLORADO STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

Case No. PCE 2013-0003

IN THE MATTER OF WHITNEY HARRAH, LPC, License No. 5022

Respondent.

FINAL BOARD ORDER

This matter comes before the State Board of Licensed Professional Counselor Examiners on exceptions to Administrative Law Judge Keith J. Kirchubel's June 19, 2014 Initial Decision. Having reviewed the Initial Decision and administrative record, and being fully informed in the premises, the Board now enters this final order.

BACKGROUND

Respondent Whitney Harrah is a licensed professional counselor and a certified addiction counselor. In January and February of 2011, Ms. Harrah was employed as the Clinical Director of the Adolescent and Family Institute of Colorado (AFIC). As the clinical director, Ms. Harrah was responsible for staff development, training, and supervision. Alex Panio is the president and founder of AFIC.

On June 18, 2013, the Board of Registered Psychotherapists filed a notice of charges against Mr. Panio, alleging that he practiced psychotherapy at AFIC without being properly registered (case number PY 2013-0007). On July 22, the Board of Licensed Professional Counselor Examiners (case number PCE 2013-0003) and Board of Addiction Counselors (case number AL 2013-0002) filed separate notices of charges against Ms. Harrah, alleging that she aided and abetted Mr. Panio in the practice of

psychotherapy and that she failed to meet the standard of care in her respective professions.

On October 7, 2013, the two cases against Ms. Harrah were consolidated under case number AL 2013-0002. On November 7, case numbers AL 2013-0002 and PY 2013-0007 were consolidated for hearing. The hearing was convened on March 24, 2014, and the Administrative Court issued an Initial Decision on June 19. The Court suspended Ms. Harrah's license as a professional counselor for a period of 18 months. Exceptions were filed on September 3, 2014, and a response was filed on September 15.¹

EVIDENTIARY FACTS

The only exception to the Administrative Court's findings of evidentiary fact concerns paragraph 46 of the Initial Decision, which reads: "On May 4, 2013, J.H. initiated an administrative complaint with the Colorado Department of Regulatory Agencies" The subject complaint appears in the record as Hearing Exhibit 2 and is dated May 4, 2011. The Board hereby modifies paragraph 46 to reflect the correct date. The evidentiary facts in the Initial Decision are otherwise adopted in their entirety and incorporated herein.

ULTIMATE CONCLUSIONS

Petitioner asks the Board to find that Mr. Panio practiced psychotherapy without proper registration by conducting an intake session depicted on Hearing Exhibit 8. The authority of this Board extends to Ms. Harrah's license as a

¹ Ms. Harrah did not file separate exceptions and the Board will only consider the challenges asserted by Petitioner. *Ehrle v. Department of Admin.*, 844 P.2d 1267, 1271 (Colo. App. 1992).

professional counselor. See C.R.S. §§ 12-43-221(1) and 12-43-223(1)(a). The Board of Registered Psychotherapists maintains jurisdiction over Mr. Panio and has authority to decide whether he engaged in an unregistered act.

Petitioner also asks the Board to conclude that Ms. Harrah violated C.R.S. § 12-43-122(1)(b) by assisting and abetting Mr. Panio in the unregistered practice of psychotherapy. However, such a conclusion is not necessary to impose discipline. (See Initial Decision, p. 24 (“The ALJ finds and concludes that Petitioners have established the bases for discipline against Dr. Panio and Ms. Harrah by a preponderance of the evidence.”))

As such, this Board will not disturb the Administrative Court’s conclusions, which are hereby adopted and incorporated herein.

SANCTIONS

The Administrative Court suspended Ms. Harrah’s license as a professional counselor for 18 months. Based on a review of the administrative record, the Board will exercise its discretion to impose additional discipline that it believes is necessary to protect the public. See *Board of Med. Exam’rs v. Ogin*, 56 P.3d 1233, 1240 (Colo. App. 2002). First, Respondent must complete the Professional/Problem-Based Ethics (ProBE) course prior to reinstatement of her license. Second, after reinstatement of her license, Respondent must complete a probationary period of 18 months, during which time she will be subject to practice monitoring.

CONCLUSION

The Board **AFFIRMS** all the Administrative Court's findings of evidentiary fact, with the exception of paragraph 46. The Board **MODIFIES** paragraph 46 to read as follows:

On May 4, 2011, J.H. initiated an administrative complaint with the Colorado Department of Regulatory Agencies targeting Dr. Panio, Ms. Harrah, and Dr. Weiss. Hearing Exhibit No. 2. The Administrative Complaint was also addressed to the Colorado Department of Behavioral health regarding the AFIC. J.H. testified that one of his aims was to have the AFIC "shut down."

The Board **AFFIRMS** the Administrative Court's ultimate conclusions.

The Board **AFFIRMS** the Administrative Court's sanction of suspending Respondent's license as a professional counselor for 18 months and **MODIFIES** the sanction to include the following:

1. As a condition of reinstatement, Respondent must successfully complete the ProBE course. Respondent shall ensure that a certificate of completion is mailed to the Board.
2. After the period of suspension, Respondent shall be on probation for a period of 18 months during which time her practice as an professional counselor shall be monitored. The Requirements for the practice monitoring are attached hereto as **Exhibit A**.

Dated and signed this 26th day of January, 2015.

FOR THE COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS



Jacqueline Arcelin,
Program Director

This decision becomes final upon mailing. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-five (45) days after such action becomes effective.

EXHIBIT A - PRACTICE MONITOR

1. Prior to reinstatement of Respondent's license to practice as a professional counselor in the State of Colorado, Respondent must have a Board-approved practice monitor in place. During the term of probation, Respondent's practice shall be monitored by a practice monitor.

2. Respondent shall submit, in writing, three proposed practice monitors for the Board's approval. Respondent shall include a Board-approved practice monitor application from each potential practice monitor, with attached curriculum vita or resume. The proposed practice monitors shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado; and
- b. It is recommended that the practice monitor have a minimum of five years' experience and not have been subject to professional discipline; and
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

3. After the Board's written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. Respondent shall not perform any act requiring a license to practice professional counseling until such time as the Board has approved Respondent's practice monitor and Respondent and practice monitor have entered into a written contract for monitoring.

4. The practice monitor shall provide a copy of the written contract to the Board as a part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, and all investigative reports; read these documents; and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

5. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur once a week for at least one hour, or such longer time as the practice monitor deems necessary. During the practice monitoring sessions, Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing addiction counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

6. The practice monitor shall submit a written report to the Board on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

7. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Board meeting.

8. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her patients, and/or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for the determination. A copy will be sent to Respondent. Upon submission of such a report, the Board will make the determination as to whether or not Applicant is able to practice with reasonable skill and safety, and whether emergency action should be taken pursuant to §§ 24-4-104 and 12-43-224(2)(c)(II), C.R.S.

9. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

10. Either Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct his/her monitoring and report to the Board in accordance with this Order. If Respondent does not have another Board-approved practice monitor in place before the termination date, Respondent shall cease the practice of professional counseling until she has another Board approved practice monitor in place.